

Council Meeting
January 11, 2023
Page 1

The Claremont City Council held a meeting on Wednesday, January 11, 2023, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Girard at 6:30 p.m.

Members of the Council present:

Ward I Councilor Andrew O’Hearne
Ward II Councilor James Contois
Ward III Councilor Jonathan Stone
Assistant Mayor Debora Matteau
At-Large Councilor Nicholas Koloski
At-Large Councilor William Limoges
At-Large Councilor Spencer Batchelder
At-Large Councilor Matthew Mooshian
Mayor Dale Girard

Also present:

Yoshi Manale, City Manager

AGENDA CHANGES

None.

REPORT OF THE SECRETARY

A motion was made by Assistant Mayor Matteau and seconded by Councilor Stone to accept the minutes of the December 14, 2022, City Council meeting.

Voice vote:

O’Hearne -yes

Batchelder - yes

Stone - yes

Matteau - yes

Koloski – yes

Limoges - yes

Contois - yes

Mooshian - yes

Girard - yes

Motion carried 9-0

MAYOR’S NOTES

Mayor Girard reported William Ragen III passed away on January 2nd 2023, and asked for a moment of silence.

Claremont Elks Club has story time for children this Sunday at 11:00 AM.

Next Tuesday there will be a public hearing for the school board for fiscal year 2024 school budget.

Lifeguard certification courses upcoming on February 4th and 18th.

CITY MANAGER'S REPORT

City Manager, Manale reported the Finance Director, Lisa Richmond will be retiring effective April 28th. Fire Chief, Bryan Burr will also be retiring April 28th.

Transfer Station began operations last Saturday, no operation issues were reported. Mr. Manale asked for community members to be respectful, and visit decamptrucking.com/Claremont-nh-transfer-station for more information.

Councilor Stone asked Director Richmond for December actuals, Ms. Richmond stated those numbers are not in yet, as December bills are still being paid.

APPOINTMENT TO BOARDS AND COMMITTEES

Claremont Television Board of Directors

A motion was made by Councilor Koloski and seconded by Assistant Mayor Matteau to appoint Councilor Mooshian to the Claremont Community Television Board of Directors.

Voice vote:

O'Hearne - yes

Batchelder - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes

Contois - yes

Mooshian - yes

Girard - yes

Motion carried 9-0

Conservation Commission

A motion was made by Assistant Mayor Matteau and seconded by Councilor Koloski to appoint Eric Ruffin to Seat A2 of the Claremont Conservation Commission.

Voice vote:

O’Hearne - yes

Batchelder - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes

Contois - yes

Mooshian - yes

Girard - yes

Motion carried 9-0

Police Commission

A motion was made by Councilor Contois and seconded by Councilor Koloski to nominate Joel Tremblay to Seat 3 of the Claremont Police Commission.

A motion was made by Councilor Stone and seconded by Councilor O’Hearne to nominate Bernard Dube to Seat 3 of the Claremont Police Commission.

Roll call:

O’Hearne - Dube

Batchelder - Dube

Stone - Dube

Matteau - Tremblay

Koloski - Tremblay

Limoges - Dube

Contois - Tremblay

Mooshian - Dube

Girard – Tremblay

Motion carried 5-4 in favor of Mr. Dube

Claremont Development Authority

Councilor Stone shared concern that there is not a seat for a Council Member on the CDA.
Councilor O’Hearne shared concern for the lack of signatures on the CDA bylaws.

A motion was made by Assistant Mayor Matteau and seconded by Councilor Koloski to re-appoint Keith Raymond to Seat 1 of the Claremont Development Authority for a 2-year term.

Voice vote:
O’Hearne – opposed
Batchelder - yes
Stone - opposed
Matteau - yes
Koloski - yes
Limoges - yes
Contois - yes
Mooshian - yes
Girard - yes
Motion carried 7-2

A motion was made by Assistant Mayor Matteau and seconded by Councilor Koloski to re-appoint Robert Porter to Seat 2 of the Claremont Development Authority for a 2-year term.

Voice vote:
O’Hearne – opposed
Batchelder - yes
Stone - opposed
Matteau - yes
Koloski - yes
Limoges - yes
Contois - yes
Mooshian - yes
Girard - yes
Motion carried 7-2

A motion was made by Assistant Mayor Matteau and seconded by Councilor Koloski to re-appoint Andre Lafreniere to Seat 3 of the Claremont Development Authority for a 2-year term.

Voice vote:
O’Hearne – opposed
Batchelder - yes
Stone - opposed
Matteau - yes
Koloski - yes
Limoges - yes
Contois - yes
Mooshian - yes
Girard - yes
Motion carried 7-2

A motion was made by Assistant Mayor Matteau and seconded by Councilor Contois to re-appoint Thomas Rock to Seat 6 of the Claremont Development Authority for a 3-year term.

Voice vote:

O’Hearne – opposed

Batchelder - yes

Stone - opposed

Matteau - yes

Koloski - yes

Limoges - opposed

Contois - yes

Mooshian - yes

Girard - yes

Motion carried 6-3

A motion was made by Assistant Mayor Matteau and seconded by Councilor Contois to re-appoint Reggie Greene to Seat 5 of the Claremont Development Authority for a 3-year term.

Voice vote:

O’Hearne – opposed

Batchelder - yes

Stone - opposed

Matteau - yes

Koloski - yes

Limoges - opposed

Contois - yes

Mooshian - yes

Girard - yes

Motion carried 6-3

A motion was made by Assistant Mayor Matteau and seconded by Councilor Contois to re-appoint Martha Maki to Seat 4 of the Claremont Development Authority for a 3-year term.

Voice vote:

O’Hearne – opposed

Batchelder - yes

Stone - opposed

Matteau - yes

Koloski - yes

Limoges - opposed

Contois - yes

Mooshian - yes
Girard - yes
Motion carried 6-3

CITIZEN'S FORUM

Mayor Girard reminded all that each speaker has five minutes on non-agenda items.

Randall Brockton, Ward 3, Dartmouth St, is suggesting a change to City Ordinance's definition of 'Ice Cream Truck'.

Councilor Stone recommended Mr. Brockton attend the next policy committee meeting on January 18th at 6:00 PM in the Council Chambers, and this will be an agenda item.

A motion was made by Councilor Koloski and seconded by Assistant Mayor Matteau to send the 'Ice Cream Truck' item to the Policy Committee.

Voice vote:
O'Hearne – yes
Batchelder - yes
Stone - yes
Matteau - yes
Koloski - yes
Limoges - yes
Contois - yes
Mooshian - yes
Girard - yes
Motion carried 9-0

Norm Blouin, Ward 3, shared concern for the Parks and Recreation Department and Director, the Planning and Development Department and Director, along with the Public Works Department.

OLD BUSINESS

Resolution 2023-21 LCHIP Grant Match

Director Merrill explained; last year the City applied for Phase 1 to restore City Hall windows, this was successful. Phase two will finish the restoration of the windows. Total cost is \$260,000.00 and the match is \$130,000.00. Director Merrill stated many windows in building are original and this a restoration project not a replacement.

RESOLUTION 2023-21

Land and Community Heritage Investment Program Grant

BE IT RESOLVED by the Claremont City Council, after a public hearing duly noticed, that:

WHEREAS the City Council by motion approved on June 8, 2022, authorized the City Manager, or his designees, to apply for a Land and Community Heritage Investment Program (LCHIP) grant for the purpose of City Hall window restoration Phase two (the Project); and

WHEREAS the City has been awarded the LCHIP Grant in the amount of up to \$130,000.00 to undertake the Project; and

WHEREAS the City would now like to expend said LCHIP grant funds for their intended purpose; and

WHEREAS the City is required to provide up to \$130,000.00 in matching funds;

NOW THEREFORE BE IT RESOLVED THAT the City Council raise, appropriate and expend up to \$260,000.00, with up to \$130,000.00 to be received from LCHIP grant funds, and up to \$130,000.00 to come from fund balance (to have no impact on the tax rate), for the purpose of repair and restoration of City Hall windows; and

BE IT FURTHER RESOLVED THAT the City Manager or his designees are hereby authorized to execute all documents and undertake all actions as may be required to implement this resolution. (2/3 Vote Required)

A motion was made by Councilor Contois and seconded by Assistant Mayor Matteau to accept Resolution 2023-21.

Councilor Contois read Resolution 2023-21 into the record.

Mayor Girard opened a public hearing, no one spoke. Mayor Girard closed the public hearing.

Roll call:

O'Hearne - yes
Batchelder - yes
Stone - yes
Matteau - yes
Koloski – yes
Limoges - yes
Contois - yes
Mooshian - yes
Girard - yes

Motion carried 9-0

NEW BUSINESS

Ordinance 605 – Parking – First Reading

City Planner deForest Bearse explained Ordinance 605.

CITY OF CLAREMONT – IN THE YEAR TWO THOUSAND AND TWENTY-TWO

ORDINANCE #605

ZONING ORDINANCE AMENDMENTS

The City of Claremont Ordains:

Pursuant to RSA 675:2 and RSA 674:16, Chapter 22, Zoning, of the Claremont City Code is hereby amended as follows:

Section 1. Off-Street Parking for Residential Uses; Shared Parking for Other Uses.

Revise and renumber Chapter 22, Zoning Ordinance, to increase flexibility for parking arrangements in the City Center districts by requiring off-street parking only for residential uses and to allow shared parking arrangements with other properties subject to planning board or zoning board of adjustment approval, as follows:

Sec. 22-1. Definitions.

Parking, off-street, shall consist of space for parking motor vehicles including space for turning movements, maneuvering, and access to the street located entirely on the lot of the use which it serves or with the approval of the planning board on nearby property owned or leased by the use, or with the approval of the planning board or zoning board of adjustment on other property through a shared parking arrangement.

Sec. 22-533. Table.

Except as otherwise provided in this chapter, off-street parking spaces shall be provided in accordance with the following:

Use	Off-Street Parking Spaces Required
(1) Single-family dwelling	Two (2)

Use	Off-Street Parking Spaces Required
(2) Multifamily	One and one-half (1½) spaces per dwelling unit
(3) Rooming houses	One (1) per rental unit
(4) Motels and hotels	0.85 spaces per rental unit
(5) Nursing homes, convalescent homes	One (1) per four (4) beds (minimum of five (5) spaces)
(6) Places of worship	One (1) per four (4) seats
(7) Hospitals	One (1) per two (2) beds
(8) Places of public assembly	One (1) per four (4) seats or per twenty (20) square feet where no permanent seats
(9) Restaurants	One (1) per four (4) seats (minimum of five (5) spaces)
(10) Retail stores and services	One (1) per four hundred (400) square feet of gross floor area
(11) General offices	One (1) per three hundred twenty-five (325) square feet of gross floor area
(12) Medical or dental offices	One (1) per three hundred twenty-five (325) square feet of gross floor area
(13) Warehouses and similar uses	One (1) per one thousand two hundred (1,200) square feet of gross floor area
(14) Industrial uses	One and one-half (1½) per employee based on maximum employee occupancy that drive to work (minimum of five (5) spaces)
(15) Mixed uses	Sum of component uses
(16) Home occupations	Parking shall be provided for all occupations involving clientele or requiring deliveries, number of spaces shall be determined by the zoning board of adjustment

Use	Off-Street Parking Spaces Required
(17) Other uses	Parking requirements for uses not covered shall be determined by the planning board as part of site plan approval

Shared parking under Sec 22-540 may combine parking for any permitted use(s), including residential uses.

Insert new sections after 22-538:

Sec 22-539. Parking in the city center residential I and II districts.

In the city center residential I and II districts, off-street parking shall only be required for residential uses as provided for in Sec 22-533; however, shared parking under Sec 22-540 may be proposed for residential and non-residential uses.

Sec. 22-540. Shared parking arrangements in city center districts.

- (a) Notwithstanding any provision of this chapter which may conflict with the following provisions, within the city center residential I and II districts, professional residential district, city center business II district and the mixed use district, applicants are encouraged to consider and propose shared parking arrangements to meet the minimum required number of off-street parking spaces for the proposed use. Shared parking may be proposed for any use permitted in such districts, including residential.
- (b) The purpose of shared parking arrangements is to reduce the total number of parking spaces required in the city center area to accommodate expected needs when land uses on different lots have different and complementary parking demand patterns and are able to use the same parking areas/spaces over time. Shared parking is most effective when these land uses have significantly different peak parking characteristics that vary by time of day, day of week, and/or season of the year, such as office, restaurant, retail, church, banking, or event spaces.
- (c) Proposals, including a site plan of all parking spaces/areas intended for shared parking and proximity to the uses/properties they will serve, will be evaluated based on expected parking needs for each use as otherwise established in this section 22 and any applicable city regulations, operating hours, seasonal/daily peaks in parking demands, the property's orientation, location of access driveways, public transportation service, accessibility to other nearby parking areas, pedestrian connections, distance to parking area, availability of parking spaces, and cooperation of adjacent owners.
- (d) Shared parking shall be located no more than 1200 linear feet from the proposed use(s) they will serve.
- (e) Approval of shared parking must be contingent upon the owners of all affected property/uses including the applicant entering an enforceable agreement guaranteeing

access to, use of, management and maintenance (including without limitation snow and ice removal) of shared parking areas.

Section 2. Prior Enactments Shall Not Be Superseded

Any adoptions and/or amendments to Chapter 22 of the City Code by action of the City Council, prior to adoption of this Ordinance, are hereby preserved subject to the current amendments as presented by this Ordinance.

Section 3. Validity

If any article, section, subsection, sentence, clause or phrase of this Ordinance is for any reason held to be unconstitutional or invalid, such decision shall not affect the remaining portions of this Ordinance.

Section 4. Effective Date

This Ordinance shall take effect and be enforced immediately upon passage.

A motion was made by Councilor Limoges and seconded by Councilor Koloski to pass Ordinance 605 to a second reading and public hearing at the January 25, 2023 Council Meeting.

Councilor Limoges read the explanation of proposed action into the record.

Mayor Girard opened a public hearing, no one spoke. Mayor Girard closed the public hearing.

Roll call:

O'Hearne - yes

Batchelder - yes

Stone - yes

Matteau - yes

Koloski – yes

Limoges - yes

Contois - yes

Mooshian - yes

Girard - yes

Motion carried 9-0

Resolution 2023-19 2022 COSSAP

Chief Wilmot explained COSSAP is another way to augment the discouragement of

drug addiction and associated challenges that comes along with that throughout the City.

RESOLUTION 2023-19

COSSAP Comprehensive Opioid, Stimulant, and Substance Abuse Site-based Program Grant

BE IT RESOLVED by the Claremont City Council, after a public hearing duly noticed, that:

WHEREAS the City of Claremont, New Hampshire has applied for and been awarded a COSSAP Comprehensive Opioid, Stimulant, and Substance Abuse Site-based Program Grant through the New Hampshire Department of Justice with a limitation of \$343,484.00

BE IT FURTHER RESOLVED to accept and expend the sum of \$343,484.00 for the Police Department covering personnel (\$239,712.00), fringe benefits (\$57,000.00), travel (\$7,500.00), supplies (\$30,000), and other (\$9,272.00) with no match, and no impact on the tax rate.

BE IT FURTHER RESOLVED that the City Manager or his designees are hereby authorized to execute all documents and undertake all actions as may be required to implement this resolution.
(2/3 Vote Required)

A motion was made by Assistant Mayor Matteau and seconded by Councilor O’Hearne to accept Resolution 2023-19.

Assistant Mayor Matteau read Resolution 2023-19 into the record.

Roll call:

O’Hearne - yes

Batchelder - yes

Stone - yes

Matteau - yes

Koloski – yes

Limoges - yes

Contois - yes

Mooshian - yes

Girard - yes

Motion carried 9-0

Mayor Girard opened a public hearing, no one spoke. Mayor Girard closed the public hearing.

Resolution 2023-20 LSL, Sampling Plan replacement Plan Grant

Director Gleeson explained this is a great opportunity for the City to have a zero match \$50,000.00 grant, for the on-going lead-line work

RESOLUTION 2023-20

Lead Service and Line Sampling and Replacement Plan Grant

BE IT RESOLVED by the Claremont City Council, after a public hearing duly noticed, that:

WHEREAS the water department pre-applied for a for \$50,000.00 Lead Service and Line Sampling and Replacement Plan Grant from the Department of Environmental Services; and

WHEREAS the City has been sent a letter of intent to award a Lead Service and Line Sampling and Replacement Plan Grant; and

WHEREAS the City would now like to accept and expend said grant funds for their intended purpose; and

WHEREAS the City is not required to match funds, with no impact on the tax rate

NOW THEREFORE BE IT RESOLVED that the City Council accept and expend up to \$50,000.00, Lead Service and Line Sampling and Replacement Plan Grant from the Department of Environmental Services for the purpose of continuing the efforts of removing lead lines, parts, and components from the existing drinking water infrastructure.

BE IT FURTHER RESOLVED that the City Manager or his designees are hereby authorized to execute all documents and undertake all actions as may be required to implement this resolution. (2/3 *Vote Required*)

A motion was made by Councilor O’Hearne and seconded by Councilor Koloski to accept Resolution 2023-20.

Councilor O’Hearne read Resolution 2023-20 into the record.

Mayor Girard opened a public hearing, no one spoke. Mayor Girard closed the public hearing.

Roll call:

O’Hearne - yes

Batchelder - yes

Stone - yes

Matteau - yes

Koloski – yes

Limoges - yes

Contois - yes
Mooshian - yes
Girard - yes
Motion carried 9-0

Council Goals 2023-2024

Mayor Girard shared this would be a good opportunity to give expectations for the year to the City Manager.

Councilor Koloski stated housing should be the top priority. Assistant Mayor Matteau agreed housing is a number one issue.

Councilor Limoges shared concerns for the City of Lebanon's website directing citizens from other towns to come to Claremont to receive our welfare services. City Manager Manale will look into this.

Councilor Stone asked if Director Carr could present estimates on homelessness currently in Claremont.

Councilor Batchelder would like to see marketing for our rural economy, and keeping our downtown areas clean.

Assistant Mayor Matteau also stated streets, roads, and sidewalks should be a high priority.

Councilor Mooshian wants to see the modernization of City Hall, with ADA accessibility.

Community Center Discussion

Mayor Girard stated back on November 9th the community center discussion started, and the recommendation was for an RFP for consultation.

Director Lawrence stated as of last week the RFQ was rolled out for the community center consulting services, the existing one is 20 years old. Director Lawrence stated three firms were contacted directly, the RFP was also in the Eagle Times yesterday, and it is on the procurement page of the NHMA website.

Councilor Conduct Discussion

Assistant Mayor Matteau reviewed the Ad Hoc Committee meetings, and stated the first meeting was to organize and figure out procedures, the second meeting consisted of inviting all who were involved to give testimony and statements, review the site plan, and address the incident that took place at a council meeting relative to Councilor Contois' response for a Conservation Commission update. The third meeting was to review the Police Chief, and Deputy Chief's sworn Statements.

A motion was made by Councilor Stone and seconded by Councilor O’Hearne to call for the recusal of Assistant Mayor Matteau and Councilor Contois for the Councilor Contois hearing.

Roll call:

O’Hearne - yes

Batchelder - no

Stone - yes

Matteau - no

Koloski – no

Limoges - yes

Contois - no

Mooshian - no

Girard - no

Motion carried 6-3

A motion was made by Councilor Stone and seconded by Councilor O’Hearne to have a standalone meeting for Councilor Contois conduct hearing.

Roll call:

O’Hearne - yes

Batchelder - yes

Stone - yes

Matteau - no

Koloski – yes

Limoges - yes

Contois - no

Mooshian - yes

Girard - yes

Motion carried 7-2

COMMITTEE REPORTS

Assistant Mayor Matteau noted Planning has not met since the December meeting.

Councilor Contois shared the Director of Planning prepares the minutes but nothing of consequence has been decided with the Conservation Commission, but they are talking about a way of funding the Conservation plan, which is due about every ten years. The Historic District Commission had concept discussions on new signs for American Legion posts, and approved signage for the Monadnock Mill Apartments.

FUTURE AGENDA ITEMS AND DIRECTIVES

A motion was made by Councilor Stone and seconded by Councilor Batchelder to place the authorized copy of the CDA Bylaws on the next agenda with a discussion on adding a Council Seat.

Roll call:

O’Hearne - yes

Batchelder - yes

Stone - yes

Matteau - yes

Koloski – yes

Limoges - yes

Contois - yes

Mooshian - yes

Girard - yes

Motion carried 9-0

CONSULTATION WITH LEGAL COUNSEL

None.

ADJOURNMENT

At 7:49 p.m., a motion was made by Assistant Mayor Matteau and seconded by Councilor O’Hearne to adjourn.

Voice vote:

O’Hearne - yes

Batchelder - yes

Stone - yes

Matteau - yes

Koloski – yes

Limoges - yes

Contois - yes

Mooshian - yes

Girard – yes

Motion carried 9-0

Respectfully Submitted,

Julia A. Bizzarro

Clerk to the Council